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## THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN THE meeting held today, attended by

Prof. Pasquale Stanzione, President, Prof. Ginevra Cerrina Feroni, Vice President, Dr. Agostino Ghiglia, Member, and Cons. Fabio Mattei, Secretary General;

HAVING REGARD TO Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, concerning the protection of natural persons with regard to the processing of personal data, as well as the free movement of such data and repealing Directive 95/46/EC, "General Data Protection Regulation" (hereinafter, "Regulation");

HAVING REGARD TO Legislative Decree No. 196 of June 30, 2003, containing the "Code regarding the protection of personal data, containing provisions for the adaptation of the national legal system to Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, concerning the protection of natural persons with regard to the processing of personal data, as well as the free movement of such data and repealing Directive 95/46/EC" (hereinafter "Code");

HAVING REGARD TO Regulation No. 1/2019 concerning internal procedures of external relevance, aimed at carrying out the tasks and exercising the powers entrusted to the Guarantor for the protection of personal data, approved by resolution No. 98 of April 4, 2019, published in G.U. No. 106 of May 8, 2019 and on [www.gpdp.it](http://www.gpdp.it), doc. web n. 9107633 (hereinafter "Guarantor Regulation No. 1/2019");

HAVING REGARD TO the documentation on file;

HAVING REGARD TO the observations made by the Secretary General pursuant to Article 15 of the Guarantor Regulation No. 1/2000 on the organization and functioning of the office of the Guarantor for the protection of personal data, doc. web n. 1098801;

Rapporteur Prof. Pasquale Stanzione;

### PREMISED

#### 1. Introduction.

With a complaint submitted, pursuant to Article 77 of the Regulation, against the Municipality of Guardiareale (hereinafter, the "Municipality"), Mr. XX has represented to this Authority that he exercised, on XX, the right of access under Article 15 of the Regulation against the Municipality and did not receive an adequate response.

In particular, the complainant stated:

- "As a recipient of public housing, following communication from ATER CHIETI on XX, I submitted a request to purchase the housing on XX [...] On XX, I received, as a copy for information, an internal communication from ATER, [...] in which it is practically stated that the sale of the property cannot proceed as it was transferred on XX to the Municipality of Guardiareale";

- "Having also learned that on XX the Municipality of Guardiareale proceeded to sell the apartments in my same condominium except for me, on XX I formally requested justification for this exclusion [...] from the Municipality of Guardiareale [...] On XX, the response I received from [...] the Municipality of Guardiareale is that the owner of the apartment is not the Municipality of Guardiareale but ATER CHIETI."

In order to understand, therefore, the owner of the property, as well as the data controller, the complainant informally approached the Municipality on several occasions, without obtaining a definitive clarification. Most recently, the complainant exercised, against the Municipality, the right of access without receiving a response.

#### 2. The investigative activity.

In response to the Authority's request (note prot. XX of XX), made pursuant to Article 15 of Regulation

No. 1/2019, concerning internal procedures of external relevance, aimed at carrying out the tasks and exercising the powers entrusted to the Guarantor for the protection of personal data (doc. web n. 9107633), the Municipality, with note prot. XX of XX, provided a partial response to the interested party, stating in particular "despite the countless discussions with ATER, it has not been possible to define, in such a short time, the ownership of the property in question. The alternation, over the years, of different administrations and various officials both in the Municipality and in ATER makes the solution to the problem very complex and delicate. In any case, the intention [...] is to clarify once and for all the matter in question, for this reason it will assign to an external professional the task of defining the location of the properties registered to the Municipality [...] The professional has 60 days to provide a detailed report on the state of affairs. It will be the responsibility of the Municipality of Guardigliare to promptly inform the results of this report to the [...] complainant]."

In order to conclude the investigation, the Authority, pursuant to Article 157 of the Code, requested the Municipality (note prot. XX of XX) for updates on the matter in question and on the possible outcome of the technical report regarding the identification of the property owner, without receiving any response. With note of XX (prot. n. XX), the Office, based on the elements acquired, the checks carried out, and the facts emerged following the investigative activity, notified the Municipality, pursuant to Article 166, paragraph 5, of the Code, of the initiation of the procedure for the adoption of the measures referred to in Article 58, paragraph 2, of the Regulation:

for having provided a response to the request of the interested party, pursuant to Article 15 of the Regulation, beyond the maximum term of one month.

proceeding in a manner that respects the rights of all parties involved, ensuring transparency and adherence to legal standards."

- "The administration is committed to resolving the issue of property ownership of the apartments located in the condominium, as mentioned, and will continue to work collaboratively with ATER to finalize the necessary assessments and actions."

- "In conclusion, the administration acknowledges the complexities involved and is dedicated to finding a resolution that is fair and just, while also complying with all applicable regulations regarding personal data protection."

- "The administration will ensure that all future actions are taken in accordance with the principles of legality, fairness, and transparency, as outlined in the relevant legislation."

- "The administration will also maintain open lines of communication with all stakeholders to facilitate a smooth resolution process."

- "Finally, the administration emphasizes its commitment to uphold the rights of individuals while fulfilling its obligations as a public entity."

**\*\*Activated Procedure\*\*;**

- "To resolve the issue, the Municipality and the ATER must reach an agreement on who will register the missing housing in the land registry, especially regarding who will bear any potential economic costs, an essential activity to subsequently allow the Municipality to include it in its Municipal Assets (following the transfer of the property from ATER to the Municipality at no cost) and possibly proceed with its alienation in the future";

- "To conclude this unfortunate situation, we also rely on the cooperation of [...] the complainant, who until today has shown an obstructive attitude, and who has always been informed of every activity that the Entity has been carrying out in accordance with the principles of legality, fairness, and transparency, considering that [...] the complainant is a consultant for the Municipality and is therefore present daily in the municipal offices and has daily and confidential relations with municipal administrators and officials, as can also be inferred from the correspondence exchanged with the Entity";

- "For the reasons stated above, the Entity does not agree with what was written by the Guarantor in the note [...] because it has always operated with legality, fairness, and transparency and has not violated the GDPR in any way."

In a note dated XX (prot. n.XX), the Municipality represented that “on XX, [...] a meeting was held between the Mayor and [...] the complainant; the parties, after a broad exchange of views and an evaluation/analysis of the documents in possession of both the Entity and the [complainant], acknowledge:

- The difficulties encountered in the activity of verifying the ownership of the property, the simultaneous identification of the Data Processing Ownership, and the exact role and function of other Entities as appointed Data Controllers;
- That such difficulties can be traced back to documentary issues, bureaucratic delays, changes in management and personnel, interpretative errors of acts and regulations, and an underestimated assessment of the problem in all its aspects, which over the last 15 years have prevented this Entity and caused this Administration a careful and resolute verification and management of ownership, and have led [...] the complainant to be unprotected both in the private aspect in general and in the aspect of privacy protection in particular;
- The willingness of the current Administration to definitively and correctly remedy this situation, also availing itself of the availability for collaboration of [...] the complainant, which has been expressed and renewed several times in this meeting”;
- “With particular reference to the hasty and erroneous ‘statements of obstructionism’ referred to [...] the complainant, for which, accepting the official apologies from this Administration that we also express in this document, he renounces, by signing this document, to raise further issues before the judicial authority for the assessment of any defamatory statements”;
- “The Mayor, on behalf of this Administration and the Entity he represents, reiterates the intention to fully support and in all aspects the [...] complainant as a citizen of this Municipality, as well as deserving of obtaining what he has requested, hoped for, and is entitled to [...] confirms the commitment made by this Administration with the document [...] also with further interventions at ATER Chieti in order to remedy all the emerged land registry issues, transfers, and management of properties, assignments of ownership and responsibilities for data processing so that the [complainant] can definitively resolve the issue at hand.”

Finally, it is reported that, in a note dated XX (prot. n. XX), ATER Chieti provided instructive elements to the Authority specifying, among other things, that it had invited the Municipality to participate in “a formal meeting [...] in order to define the ownership of the housing of [...] the complainant and to give him clear and precise indications on the possibility of purchase” and attaching the historical surveys of the property from which it is evident that the property in question is still owned by the Municipality (attachment 4).

### **\*\*3. Outcome of the Instructive Activity.\*\***

The processing of personal data by public entities must occur in compliance with the provisions of the Regulation and the Code.

The processing of personal data carried out by public entities is, as a rule, lawful only if necessary “to fulfill a legal obligation to which the data controller is subject” or “for the performance of a task carried out in the public interest or in the exercise of public powers vested in the data controller” (art. 6, par. 1, lett. c) and e), of the Regulation). The data controller, even in the presence of a condition of lawfulness, is in any case required to respect the principles regarding the protection of personal data, among which is the principle of “lawfulness, fairness, and transparency” according to which data must be “processed in a lawful, fair, and transparent manner in relation to the data subject” (art. 5, par. 1, lett. a) of the Regulation).

Pursuant to art. 15 of the Regulation, the data subject has the right to obtain from the data controller or (as in the present case, the presumed data controller), “confirmation as to whether or not personal data concerning him or her is being processed and, if so, to obtain access to the personal data and the following information: a) the purposes of the processing; b) the categories of personal data concerned; c) the recipients or the recipients to whom personal data have been or will be communicated [...]”. Article 12, paragraph 3, of the Regulation establishes that the data controller must respond to the request of the data subject without undue delay and, in any case, no later than one month from the receipt of the request. This

period may be extended by two months, if necessary, taking into account the complexity and number of requests, provided that the data subject is informed of such extension and the reasons for the delay within one month of receiving the request (recital 59 and Article 12, paragraph 4, of the Regulation).

During the investigation, it was established that there was no response to the exercise of the rights of the data subjects (specifically, the right of access under Article 15 of the Regulation), in violation of Articles 5 and 12 of the same Regulation. It is worth clarifying that, in the case at hand, the data subject, in order to benefit from the right of first refusal to purchase the housing assigned to him, needed to identify the owner of the property - as well as the data controller of the personal data related to the management of the housing. For these reasons, after numerous and fruitless communications with the Municipality, the complainant exercised the right of access against the Municipality, which, in any case, did not provide a response within the time frame established by the Regulation.

The Supervisory Authority, within the scope of the tasks and powers conferred by the Regulation, processes complaints by conducting appropriate investigations, also regarding the correct application of data protection legislation (Article 57, paragraph 1, letters a), f) and h) and Article 58 of the Regulation). For this purpose, the Authority has the power to order the data controller and the data processor to provide any information necessary for the execution of its tasks (Article 58, paragraph 1, letter a), of the Regulation).

Article 157 of the Code also provides that, in relation to the powers referred to in Article 57 of the Regulation and for the performance of its tasks, the Guarantor may request the data controller, the processor, the representative of the controller or the processor, the data subject, or even third parties, to provide information and to exhibit documents, and that failure to respond to such a request within the indicated time frame makes the administrative pecuniary sanction provided for in Article 83, paragraph 5 of the Regulation applicable (see Article 166, paragraph 2, of the Code).

In this case, it was established that the Municipality failed to respond to the Authority's request for information (note prot. XX of XX), thus confirming the violation of Article 157 of the Code. In this regard, it is noted that, also in light of the general principles of good administration, efficiency, effectiveness, and economy of administrative action (Article 97 of the Constitution, as well as Article 9, paragraph 1 and Article 10, paragraph 3, of the internal Regulation of the Guarantor No. 1/2019 of April 4, 2019, doc. web No. 9107633), the lack of response affected the completeness and timeliness of the investigative activity. Regarding this complaint, it is noted that the Municipality did not submit defensive briefs.

#### 4. Conclusions.

In light of the evaluations mentioned above, it is noted that the statements made by the Municipality regarding the processing during the investigation - the veracity of which may be subject to accountability under Article 168 of the Code - although deserving of consideration, do not allow for overcoming the observations notified by the Office with the initiation of the procedure and are insufficient to allow for the closure of the present procedure, as none of the cases provided for in Article 11 of the Guarantor's Regulation No. 1/2019 apply. Therefore, the preliminary evaluations of the Office are confirmed, and the illegality of the processing of personal data carried out by the Municipality is noted, for having provided the data subject with a late and partial response to the access request, in violation of Articles 5, paragraph 1, letter a), 12, paragraphs 3 and 4, and 15 of the Regulation, and for failing to respond to the request for information made by the Guarantor, in violation of Article 157 of the Code.

5. Adoption of the injunction order for the application of the administrative pecuniary sanction and accessory sanctions (Articles 58, paragraph 2, letter i), and 83 of the Regulation; Article 166, paragraph 7, of the Code).

The Guarantor, pursuant to Articles 58, paragraph 2, letter i), and 83 of the Regulation as well as Article 166 of the Code, has the power to "impose an administrative pecuniary sanction pursuant to Article 83, in addition to the [other] corrective measures referred to in this paragraph, or in lieu of such measures, depending on the circumstances of each individual case" and, in this context, "the Board [of

the Guarantor] adopts the injunction order, which also provides for the application of the accessory administrative sanction of its publication, in whole or in part, on the Guarantor's website pursuant to Article 166, paragraph 7, of the Code" (Article 16, paragraph 1, of the Guarantor's Regulation No. 1/2019).

In this regard, taking into account Article 83, paragraph 3, of the Regulation, in this case, the violation of the cited provisions is subject to the application of the same administrative pecuniary sanction provided for in Article 83, paragraph 5, of the Regulation. The aforementioned administrative pecuniary sanction imposed, depending on the circumstances of each individual case, must be determined in amount taking into due account the elements provided for in Article 83, paragraph 2, of the Regulation, regarding which the following observations are made.

The delay and incompleteness of the responses provided to the complainant, as well as the failure to respond to the

REQUEST FOR INFORMATION FROM THE GUARANTOR, have negatively impacted the completeness and promptness of the investigative activity.

On the other hand, it is noted that the Municipality has taken steps to remedy the violation and mitigate its possible negative effects, and that there are no previous relevant violations or prior measures against the Municipality under Article 58 of the Regulation. It is also noted that the violation is of a negligent nature. In light of the aforementioned elements, assessed as a whole, it is deemed appropriate to determine the amount of the monetary sanction at €5,000 (five thousand) for the violation of Articles 5, 12, and 15 of the Regulation and Article 157 of the Code, as an administrative monetary sanction considered, pursuant to Article 83, paragraph 1, of the Regulation, effective, proportionate, and dissuasive.

It is also considered that the accessory sanction of publication of this provision on the Guarantor's website should be applied, as provided for by Article 166, paragraph 7, of the Code and Article 16 of the Guarantor's Regulation No. 1/2019.

Finally, it is believed that the conditions referred to in Article 17 of Regulation No. 1/2019 concerning internal procedures with external relevance, aimed at carrying out the tasks and exercising the powers assigned to the Guarantor, are met.

ALL OF THE ABOVE HAVING BEEN STATED, THE GUARANTOR

pursuant to Article 57, paragraph 1, letter f), of the Regulation, declares the conduct of the Municipality of Guardiagrele, described in the reasoning, to be unlawful, consisting of the violation of Articles 5, 12, and 15 of the Regulation and Article 157 of the Code.

#### ORDERS

The Municipality of Guardiagrele, located at Piazza San Francesco, No. 12 66016 (CH) - C.F. 00239980691 - pursuant to Articles 58, paragraph 2, letter i), and 83, paragraph 5, of the Regulation and Article 166, paragraph 2, of the Code, to pay the sum of €5,000 (five thousand) as an administrative monetary sanction for the violations indicated in the reasoning;

#### COMMANDS

The Municipality of Guardiagrele to pay the sum of €5,000 (five thousand) according to the methods indicated in the attachment, within 30 days from the notification of this provision, under penalty of the adoption of subsequent executive acts in accordance with Article 27 of Law No. 689/1981.

In this regard, it is reminded that the offender retains the option to settle the dispute by paying – always according to the methods indicated in the attachment – an amount equal to half of the imposed sanction, within 30 days from the date of notification of this provision, pursuant to Article 166, paragraph 8, of the Code (see also Article 10, paragraph 3, of Legislative Decree No. 150 of September 1, 2011);

#### DISPOSES

the publication of this provision on the Guarantor's website pursuant to Article 166, paragraph 7, of the

Code;

the annotation of this provision in the internal register of the Authority, as provided for by Article 57, paragraph 1, letter u), of the Regulation, of the violations and measures adopted in accordance with Article 58, paragraph 2, of the Regulation.

Pursuant to Articles 78 of the Regulation, 152 of the Code, and 10 of Legislative Decree No. 150/2011, it is possible to appeal against this provision before the ordinary judicial authority, under penalty of inadmissibility, within thirty days from the date of communication of the provision itself or within sixty days if the appellant resides abroad.

Rome, June 1, 2023

THE PRESIDENT

Stanzione

THE REPORTER

Stanzione

THE SECRETARY GENERAL

Mattei